

PROPOSED
SENATE AMENDMENTS TO S.B. 1034
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 29, Arizona Revised Statutes, is
3 amended by adding section 13-2910.13, to read:

4 13-2910.13. Animal abuse database

5 A. THE COURT SHALL ESTABLISH AND MAINTAIN AN ANIMAL ABUSE DATABASE
6 THAT INCLUDES ANY PERSON WHO AT THE TIME OF THE OFFENSE WAS AT LEAST
7 EIGHTEEN YEARS OF AGE AND WHO WAS CONVICTED OF OR FOUND GUILTY EXCEPT
8 INSANE FOR ANY OF THE FOLLOWING OFFENSES, WHETHER COMPLETED OR
9 PREPARATORY, OR THE SAME OR A SUBSTANTIALLY SIMILAR OFFENSE IN ANOTHER
10 STATE OR JURISDICTION:

11 1. CRUELTY TO ANIMALS PURSUANT TO SECTION 13-2910, SUBSECTION A,
12 PARAGRAPH 8, 9, 11, ~~[14,]~~ 15, 16 OR 19.

13 2. ANIMAL FIGHTING PURSUANT TO SECTION 13-2910.01.

14 3. BESTIALITY PURSUANT TO SECTION 13-1411.

15 B. THE DATABASE SHALL CONSIST ONLY OF DATA FROM THE COURTS AND
16 SHALL INCLUDE ALL OF THE FOLLOWING:

17 1. THE PERSON'S:

18 (a) CONVICTION, INCLUDING THE DATE, LEVEL AND JURISDICTION OF
19 CONVICTION.

20 (b) DATE OF BIRTH.

21 (c) RACE AND PHYSICAL DESCRIPTION.

22 (d) PHOTOGRAPH AND FINGERPRINT, IF AVAILABLE.

23 2. ANY NAMES BY WHICH THE PERSON IS KNOWN.

24 3. WHETHER THE PERSON IS MALE OR FEMALE.

25 C. THE COURT MAY ACCEPT AND SPEND FEDERAL MONIES AND PRIVATE GIFTS,
26 GRANTS, CONTRIBUTIONS AND DEVICES TO ASSIST IN CARRYING OUT THE PURPOSES
27 OF THIS SECTION. THESE MONIES DO NOT REVERT TO THE STATE GENERAL FUND AT
28 THE END OF A FISCAL YEAR.

1 D. A PERSON WHO IS LISTED ON THE DATABASE MAY PETITION THE COURT TO
2 REMOVE THE PERSON'S RECORD FROM THE DATABASE. IN THE PETITION, THE PERSON
3 SHALL AVOW, UNDER PENALTY OF PERJURY, ALL OF THE FOLLOWING:
4 1. AT LEAST FIVE YEARS HAVE ELAPSED SINCE THE PERSON WAS CONVICTED
5 OR FOUND GUILTY EXCEPT INSANE.
6 2. THE PERSON SUCCESSFULLY COMPLETED ANY COURT-ORDERED ANIMAL ABUSE
7 TREATMENT AND ANY TERMS AND CONDITIONS OF PROBATION.
8 3. THE PERSON DEMONSTRATES TO THE COURT THE PERSON DOES NOT POSE A
9 RISK TO ANIMALS.
10 E. THE COURT SHALL REMOVE A PERSON'S RECORD FROM THE DATABASE ONLY
11 IF THE COURT DETERMINES THAT THE PERSON HAS SATISFIED THE REQUIREMENTS
12 PRESCRIBED IN SUBSECTION D OF THIS SECTION.

13 Enroll and engross to conform
14 Amend title to conform

THOMAS "T.J." SHOPE

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